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U.S. Department of State Diplomacy in Action

Laos

Country Reports on Human Rights Practices
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The Lao People's Democratic Republic is an authoritarian, Communist, one-party state ruled by the Lao People's Revolutionary Party (LPRP). Although the 1991 Constitution outlines a system composed of executive, legislative, and judicial branches, in practice the LPRP continued to influence governance and the choice of leaders through its constitutional "leading role" at all levels. The 99-member National Assembly, elected in 1997 under a system of universal suffrage, selected the President and Prime Minister in February 1998. The judiciary is subject to executive influence.

The Ministry of Interior (MOI) maintains internal security but shares the function of state control with party and mass front organizations. The Ministry of Foreign Affairs is responsible for the monitoring and oversight of foreigners working in Laos; these activities are augmented by other security organizations' surveillance systems. The MOI includes local police, security police (including border police), communication police, and other armed police units. The armed forces are responsible for external security but also have some domestic security responsibilities that include counter-terrorism and counter-insurgency activities. Civilian authorities generally maintain effective control over the security forces. There continue to be credible reports that some members of the security forces committed human rights abuses.

Laos is an extremely poor country. After the LPRP came to power in 1975, 10 percent of the population (at least 360,000 persons) fled the country to escape the Government's harsh political and economic policies. The economy is principally agricultural; 85 percent of the population is engaged in subsistence agriculture. Per capita gross domestic product is estimated to be \$240 per year. Since 1986 the Government largely has abandoned its Socialist economic policies. Economic reforms have moved the country from a moribund, centrally planned system to a market-oriented economy open to foreign investment with a growing legal framework, including laws to protect property rights.

The Government's human rights record deteriorated in some aspects throughout the year, and serious problems remain. Citizens do not have the right to change their government. Members of the security forces at times abused detainees and acted brutally toward suspected insurgents. Prison conditions are extremely harsh, and police used arbitrary arrest, detention, and intrusive surveillance. Lengthy pretrial detention is a problem. The judiciary is subject to executive influence, suffers from corruption, and does not ensure citizens due process. The Government infringed on citizens' privacy rights. The Government restricts freedom of speech, assembly, and association. The Government restricts freedom of religion and arrested and detained more than 55 Christians. The Government imposes some restrictions on freedom of movement and the press. Some societal discrimination against women and minorities persists. The Government restricts some worker rights.

However, it permitted increased access to the foreign press and the Internet and actively supported a policy of encouraging greater rights for women and minorities. The Government has begun to focus on the problem of trafficking in women and children.

An organized Hmong insurgent group was responsible for occasional clashes with government troops. These exchanges reportedly were brutal on both sides.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no confirmed reports of politically motivated or other extrajudicial killings by government officials during the year. There continued to be isolated, unsubstantiated reports of deaths at the hands of security forces in remote areas, usually in connection with personal disputes and the personal abuse of authority.

Attacks by armed bands on official and civilian travelers continued on a small scale in the central and north central regions. The attacks apparently involved a mixture of factors including insurgency, clan rivalry, robbery, and reaction to encroaching development. There were reports that a few civilians were killed. The Government remained concerned about the safety of foreigners in remote areas, although there were no confirmed attacks on foreigners during the year.

b. Disappearance

There were no reports of politically motivated disappearances; however, there were contradictory reports concerning the disappearance of two U.S. citizens near the northwest border with Thailand. The two men, Michael Vang and Houa Ly, reportedly disappeared on April 19. The matter remained under investigation by authorities at year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution and the Penal Code prohibit torture, and the Government generally respected these provisions in practice; however, on occasion, members of the security forces subjected detainees to abusive treatment. For example, in March 1998, Lao authorities, some wearing police uniforms, detained a foreign citizen and three family members in an unofficial detention center for 4 days. The Government did not file charges against the four persons. The officials reportedly kept the four persons in locked, windowless rooms and subjected them to long and arduous interrogation before releasing them. The Government offered no explanation for this treatment. There is no evidence that the Government is investigating the incident seriously.

The Government chose not to address numerous reports that were made by groups outside the country of massive human rights abuses by government authorities. Most of these reports could not be confirmed through independent sources. However, there continue to be credible reports that some members of the security forces committed human rights abuses, including arbitrary detention and intimidation. There were unconfirmed reports that some members of the security forces were responsible for beatings and that others acted brutally in the first half of the year in clashes with insurgents or armed individuals suspected to be insurgents.

Prison conditions generally are extremely harsh. Food rations are minimal, and most prisoners rely on their families for their subsistence. The Government discriminates in its treatment of prisoners, restricting the family visits of some and prohibiting visits to a few. Prison authorities use degrading treatment, solitary confinement, and incommunicado detention against perceived problem prisoners. There are confirmed reports that a few jails place prisoners in leg chains, wooden stocks, or fixed hand manacles for extended periods. Medical facilities range from poor to nonexistent. Prison conditions for women are

similar to those for men. Several international human rights groups continued their longstanding requests to the Government to move two political prisoners to a prison with better conditions, including more modern medical facilities (see Section 1.e.). At year's end, the Government continued to ignore these humanitarian pleas.

The Government does not permit independent monitoring of prison conditions.

d. Arbitrary Arrest, Detention, or Exile

The law provides for arrest warrants issued by the prosecutor, and the Constitution provides for due process procedures; however, in practice the Government does not respect these provisions fully, and arbitrary arrest and detention remain problems. Police sometimes use temporary arrest as a means of intimidation. Police exercise wide latitude in making arrests, relying on exceptions to the requirement for arrest warrants for those in the act of committing a crime or for "urgent" cases. Length of detention without pretrial hearing or charges is unpredictable, and access to family or a lawyer is not assured. There is a functioning bail system, but its implementation is arbitrary. A statute of limitations applies to most crimes. Alleged violations of security laws have led to lengthy pretrial detentions without charge and minimal due process protection of those detained. There were reports that some students, teachers, and their associates who staged protests were detained for expressions of hostility to the regime.

A number of Hmong returnees were detained in Thoulakhom district, some for 2 months, on an apparently fabricated charge that was later dropped (see Section 5).

During and after an abortive, peaceful protest in Vientiane on October 26, police arrested at least 30 participants and detained for questioning scores of suspected protest supporters. At least 10 suspected protesters remained in custody without charge at year's end. The Government refused to acknowledge the incident publicly. The Ministry of Interior did not indicate whether those arrested were in investigative detention, in accordance with the law.

During the year, government authorities arrested and detained more than 55 Protestant Christian believers and their spiritual leaders, at times holding them in custody for months. In Attapeu two prisoners had been in prison for 18 months and 16 months at year's end, respectively; their detentions exceed the 1-year limit on investigative detention. In Savannakhet 15 persons were held in detention for up to 10 months before the provincial government brought charges against them related to their religious activities. In Houaphanh 23 persons were arrested during October and November for their religious activities; their status was unclear at year's end. In Oudomxay four persons were arrested in October based on their beliefs; they had not been charged by year's end (see Section 2.c.). Three former government officials detained in 1990 for advocating a multiparty system and criticizing restrictions on political liberties were not tried until 1992. One since has died in prison. That same year, the court finally tried and handed down life sentences to three men detained since 1975 for crimes allegedly committed during their tenure as officials under the previous regime. One of these persons reportedly has died in prison.

Based on known cases of detention for suspicion of violations of national security, an estimated 100 to 200 persons are in detention. Most of these detainees are held without trial; one person has been detained since 1992. The Government does not use forced exile.

e. Denial of Fair Public Trial

The Constitution provides for the independence of the judiciary and the prosecutor's office; however, senior government and party officials wield influence over the courts, although likely to a lesser degree than in the past. Some corrupt members of the judiciary appear to act with impunity. The National Assembly Standing Committee appoints judges; the executive appoints the Standing Committee.

The Lao People's Courts have three levels: District; municipal and provincial; and a Supreme Court. Decisions of both the lower courts and separate military courts are subject to review by the Supreme Court.

The Constitution provides for open trials in which defendants have the right to defend themselves with the assistance of a lawyer or other person. The Constitution requires authorities to inform persons of their rights. The law states that defendants may have anyone represent them in preparing a written case and accompanying them at their trial, but only the defendant may present oral arguments at a criminal trial; however, due to lack of funds, most defendants do not have lawyers. Defendants enjoy a presumption of innocence; however, in practice lawyers face severe restrictions in criminal cases. Most trials are little more than direct examinations of the accused, although judges appear not to hold preconceived views of a trial's outcome. Trials for alleged violations of some security laws and trials that involve state secrets, children under the age of 16, or certain types of family law are closed.

There are four known political prisoners: Two prisoners from the pre-1975 regime, Colonel Sing Chanthakoumane and Major Pang Thong Chokbengvoun, who are serving life sentences after trials that did not appear to be conducted according to international standards; and two former government officials, Latsami Khamphoui and Feng Sakchittaphong, detained in 1990 for advocating a multiparty system and criticizing restrictions on political liberties were not tried until 1992; they are serving 14-year sentences based on their 1992 convictions.

Because some political prisoners may have been arrested, tried, and convicted under security laws that prevent public court trials, there is no reliable method to ascertain accurately their total number. There have been no reports of other political prisoners in the last few years.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The Government imposes some limits on these rights. Security laws allow the Government to monitor individuals' private communications and movements. The evidence suggests that the Government strengthened these elements of state control during the year, especially in areas with safety and security problems. Some personal freedoms accorded to citizens have expanded over the past few years in tandem with liberalization of the economy.

The Constitution prohibits unlawful searches and seizures; however, police at times disregarded constitutional provisions to safeguard citizens' privacy, especially in rural areas. Security police may not authorize their own searches; they must have approval from a prosecutor or court. However, in practice they did not always obtain prior approval. The Penal Code generally protects privacy, including mail, telephone, and electronic correspondence.

Political groups other than mass front organizations approved by the LPRP are forbidden. Ministry of Interior forces occasionally monitor citizens' activities; in addition a loose militia in both urban and rural areas has responsibility for maintaining public order and reporting "bad elements" to the police. Militia usually concern themselves more with petty crime and instances of moral turpitude than with political activism, although some rural militia may be used for security against insurgents. A sporadically active system of neighborhood and workplace committees plays a similar monitoring role on an informal and irregular basis.

The Government does not permit the public sale of some leading foreign magazines and newspapers. However, minimal restrictions on publications mailed from overseas are loosely enforced (see Section 2.a.). The Government allows citizens to marry foreigners but only with its prior approval. Although the Government routinely grants permission, the process is burdensome. Marriages to foreigners without government approval may be annulled, with both parties subject to fines.

The Government displaced internally hundreds of persons during the year, mainly as a result of organized infrastructure development programs. The Government provides compensation to displaced persons in the form of land and household supplies. In September the Government began a review of its policy toward ethnic minorities, including a review of its policy of resettlement to solve the problem of highland "slash-and-burn" methods that destroyed forest areas and resulted in habitat damage. Credible sources report more flexibility by the Government toward the disposition of infrastructure-related and other government-planned resettlements. However, some local administrators forced highlander groups to resettle in lowland areas to control their use of farming methods that destroy forest areas in the pursuit of increased food security.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government severely restricts political speech and writing in practice. The Government also prohibits most criticism that it deems harmful to its reputation. The Penal Code forbids slandering the State, distorting party or state policies, inciting disorder, or propagating information or opinions that weaken the State. The Government has shown more tolerance of general criticisms aimed at good governance or improved public service, and citizens who lodge legitimate complaints with government departments generally do not suffer reprisals. In the second half of the year, apparent government concern about public discontent over failed economic policies led to tighter media control and fewer critical articles and broadcasts. No Lao newspapers reported the October 26 protest (see Section 1.d.).

All print and electronic media are state-owned and controlled. Local news in all media reflects government policy, and only rarely hints at differences of opinion. Television talk shows and opinion articles refer only to differences in administrative approach. Translations of foreign press reports generally are without bias, and access to Thai press, radio, and television is unhindered. Other Asian and many Western newspapers and magazines are available through private outlets that have government permission to sell them.

Authorities also prohibited the dissemination of materials deemed to be indecent, to undermine the national culture, or to be politically sensitive. Films and music recordings produced in government studios must be submitted for official censorship. However, in practice most foreign media are easily available. Government enforcement of restrictions on nightclub entertainment generally was lax during the year.

Citizens have 24-hour access to Cable News Network and the British Broadcasting Corporation, among other international stations accessible via satellite television. The Government requires registration of satellite dishes and a one-time licensing fee for their use, largely as a revenue-generating scheme, but otherwise makes no effort to restrict their use.

Foreign journalists must apply for special visas. Unfettered access to information sources and domestic travel unescorted by officials--hallmarks of a more liberal government attitude in previous years--declined during the year.

The Constitution provides for academic freedom; however, the Government restricts it, although it has relaxed its restrictions in certain areas. Lao and Western academic professionals conducting research in Laos may be subject to restrictions on travel and access to information and Penal Code restrictions on publication. As the sole employer of virtually all academic professionals, the Government exercises some control over their ability to travel on research or study grants. However, the Government, which once limited foreign travel by professors, actively seeks out these opportunities worldwide and approves virtually all such proposals.

Credible reports indicate that some academically qualified ethnic minorities, including Hmong, are denied opportunities for foreign fellowships and study abroad based on the actions of some state and party officials, whose discriminatory behavior goes unchecked. On rare occasions, the Government has denied government employees who were not party members permission to accept certain research or study grants, apparently because they had chosen not to join the LPRP.

While preparing to assemble and demonstrate in a peaceful protest march on Vientiane's main boulevard, at least 30 protesters were arrested on October 26. They reportedly intended to demand the resignation of the Government, more freedom, and multiparty democracy. Other suspected supporters were detained for questioning. The Government remained silent on the arrests and subsequent detentions (see Section 1.d.). Some government officials characterized the group's assembly and attempts to express their opinions as illegal antigovernment activities.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly, but the Government continues to restrict this right in practice. The Penal Code prohibits participation in an organization for the purpose of demonstrations, protest marches, or other acts that cause turmoil or social instability. Such acts are punishable by a prison term of from 1 to 5 years.

In May a group of 100 citizens of China assembled in Vientiane to protest the North Atlantic Treaty Organization's (NATO) bombing that damaged the Chinese embassy in Belgrade, Serbia. Plainclothes police quickly intercepted the group, but otherwise allowed them to conduct their peaceful protest. This demonstration, considered the second largest since 1975, was never reported in the local media.

In June the Government released the last 8 persons among 44 arrested in January 1998 for gathering at a Christian bible study session in a private home. The 8 were among 13 convicted for participating in a group assembly for the purpose of creating social turmoil. The Vientiane municipal court record of the 1998 case indicates that the judge considered one statement made by a member of the group to be critical of the Government (also see Section 2.c.).

Although the Constitution provides citizens with the right to organize and join associations, the Government restricts this right in practice. The Government registers and controls all associations and prohibits associations that criticize it. Although the Government restricts many types of formal professional and social associations, in practice informal nonpolitical groups can meet without hindrance. Individuals who had formed the Foundation for Promoting Education, a private voluntary organization in Vientiane Municipality in 1997, were active during the year and awarded prizes for educational achievement and scholarships to needy students. The group is supported by private contributions and operates independently under its own charter, but reports to the Ministry of Education. The Buddhist Promotion Foundation is a semiprivate group founded in 1998 by the Lao Buddhist Fellowship Association, which reports to the National Front.

c. Freedom of Religion The Constitution provides for freedom of religion; however, the Government restricts this right in practice. The Constitution prohibits "all acts of creating division of religion or creating division among the people." The Party and Government appear to interpret this section narrowly, thus inhibiting religious practice by all persons, including the Buddhist majority and a large population of animists. Although official pronouncements accepted the existence of religion, they emphasized its potential to divide, distract, or destabilize.

The Constitution notes that the State "mobilizes and encourages" monks, novices, and priests of other religions to participate in activities "beneficial to the nation and the people." The Department of Religious Affairs in the LPRP Lao National Front for Reconstruction, an LPRP mass organization, is responsible for overseeing all religions.

The Government's tolerance of religion varied by region. In general central government authorities appeared unable to control or mitigate harsh measures that were taken by local or provincial authorities against the practices of members of minority religious denominations. Although there was almost complete freedom to worship among unregistered groups in a few areas, particularly in the largest cities, government authorities in many regions allowed properly registered religious groups to practice their faith only under circumscribed conditions. In other areas, such as Savannakhet, Houaphanh, Oudomxay, and Attapeu, the authorities arrested and detained religious believers and their spiritual leaders without charges. In Luang Prabang, three evangelical Christians were sentenced on November 26 to 5 years' imprisonment under Article 66 of the Penal Code for gathering together to create social turmoil. Each of the three was a well-known Christian spiritual leader. It is not known whether their single meeting was anything other than a social get-together. In more isolated cases, provincial authorities instructed their officials to monitor and arrest persons who professed belief in Christianity, Islam, or the Baha'i faith. For example, there is clear evidence that in Luang Prabang and Savannakhet provinces the authorities continued to force some Christians to sign renunciations of their faith.

Early in the year, citizens in Luang Prabang reported that authorities ordered them to stop completely their Christian activities, under threat of arrest. The order appeared to apply only to new converts; believers of long standing were allowed to continue their beliefs and practices.

In Savannakhet 15 persons were held in detention for up to 10 months before the provincial government brought charges against them related to their religious activities. In Houaphanh 23 persons were arrested during October and November for their religious activities; their status was unclear at year's end. In Oudomxay four persons were arrested in October for their beliefs; they had not been charged by year's end (see Section 1.d.).

In a southern province, police refused to release a Lao Christian who was arrested for proselytizing until the detainee had pledged not to proselytize again. Although authorities tolerate diverse religious practices in mid-1998, in the southern Laos panhandle, a pattern of petty local harassment persists. Many converts must pass a gauntlet of harsh government interviews but after overcoming that initial barrier are permitted to practice their new faith unhindered. During the early part of the year, members of long-established congregations had few problems in practicing their faith; however, in the second half of the year, some churches established a century ago were subjected to harassment by local government officials in Savannakhet. Many groups of coreligionists seeking to assemble in a new location are thwarted in attempts to meet, practice, or celebrate major religious festivals.

Some minority religious groups report that they were unable during the year to register new congregations or receive permission to establish new places of worship, including in Vientiane. Authorities sometimes advised new branches to join other religious groups with similar historical antecedents, despite clear differences between the groups' beliefs. Some groups did not submit applications for places of worship because they did not believe that their applications would be approved.

The Government in June released the last 8 of 13 Christians convicted in March 1998 for exercising their rights to peaceful assembly and free speech in a Bible study session (see Section 2.b.). The eight remain on probation. Authorities continue to make arrests related to religious activities. An estimated 55 to 60 members of religious minorities remain in detention. A few of the religious detainees are singled out for special treatment: They must wear chains on their legs or fixed manacles on their wrists. One detainee was in solitary confinement for a period of 3 to 4 weeks. In addition authorities in some provinces frequently arrested and detained persons temporarily because of their religious beliefs. The Roman Catholic Church is unable to operate effectively in the highlands and much of the north. However, it has an established presence in five of the most populous central and southern provinces, where Catholics are able to worship openly. There are three bishops: In Vientiane, Thakhek, and Pakse. The status of the Catholic Church in Luang Prabang center remains in doubt; there appears to be a congregation there but, due to local obstructionism, worship services may not always be conducted readily.

Over 250 Protestant congregations conduct services throughout the country. The Lao National Front has recognized two Protestant groups, the Lao Evangelical Church, the umbrella Protestant church, and the Seventh Day Adventist Church. The Front strongly encourages all other Protestant groups to become a part of the Lao Evangelical Church. The Government has granted permission to these approved denominations to have a total of four church buildings in the Vientiane area. In addition the Lao Evangelical Church has maintained church buildings in Savannakhet and Pakse.

The Party controls the Buddhist clergy (Sangha) in an attempt to direct national culture. After 1975 the Government attempted to "reform" Buddhism and ceased to consider it the state religion, causing thousands of monks to flee abroad, where most still remain. The Government has only one semireligious holiday-Boun That Luang-also a major political and cultural celebration. However, the Government recognizes the popularity and cultural significance of Buddhist festivals, and many senior officials openly attend them. Buddhist clergy are featured prominently at important state and party functions. The Lao National Front directs the Lao Buddhist Fellowship Association, which adopted a new charter in April 1998. The Front continues to require monks to study Marxism-Leninism, to attend certain party meetings, and to combine with their teachings of Buddhism the party-state policies. In recent years, some individual temples have been able to receive support from Theravada Buddhist temples abroad, to expand the training of monks, and to focus more on traditional teachings.

The authorities continue to be suspicious of parts of the religious community other than Buddhism, including some Christian groups, in part because these faiths do not share a similar high degree of direction and incorporation into the government structure as is the case with Theravada Buddhism. Authorities especially appear to suspect those religious groups that gain support from foreign sources, aggressively proselytize among the poor or uneducated, or give targeted assistance to converts. The Government prohibits foreigners from proselytizing, although it permits foreign nongovernmental organizations

with religious affiliations to work in the country. Although there is no prohibition against proselytizing by citizens, there has been increased local government investigation and harassment of citizens who do so under the constitutional provision against creating division of religion.

The Government permits major religious festivals of all established congregations without hindrance. Two mosques and two Baha'i centers operate openly in Vientiane municipality; two other Baha'i centers are located in Vientiane province and Pakse. Five Mahayana Buddhist pagodas are located in Vientiane, and others are found in larger cities and towns.

The Government does not permit the printing of religious texts or their distribution outside a congregation and restricts the import of foreign religious texts and artifacts. The Government requires and grants routinely its permission for formal links with coreligionists in other countries; however, in practice the line between formal and informal links is blurred, and relations generally are established without much difficulty.

d. Freedom of Movement Within the Country, Foreign Travel, Migration, and Repatriation

The Constitution provides for these rights; however, the Government restricted some of these rights in practice. Citizens who travel across provincial borders are required to report to authorities upon their departure and arrival. In designated security zones, roadblocks and identity card checks are routine. Citizens who seek to travel abroad are required to apply for an exit visa; however, the Government grants these routinely. Foreigners are restricted from traveling to certain areas such as the Saysomboun Special Zone, an administrative area operated by the military forces, for safety and security reasons.

Fear of insurgent attacks on civilians in vehicles traveling in the north-central areas impedes travel, especially along parts of Route 13, Route 7, and Route 1. Bandits operate in the same area (see Section 1.a.). The Government attempts to ensure safety on these roads.

Citizens are free to emigrate; exit visas are required, and the Government grants these routinely.

Since 1980 more than 29,060 citizens who sought refugee status in Thailand, China, and other countries have returned to Laos for permanent resettlement under monitoring by the U.N. High Commissioner for Refugees (UNHCR). There were 1,162 new returnees during the year. The Government cooperates with the UNHCR in assisting the groups' reintegration into society. These returnees generally have been treated the same as other citizens.

The Constitution provides for asylum and the protection of stateless persons under the law, which has included first asylum. There were no known cases during the year of asylum seekers being returned to a country where they feared persecution.

The Government has a longstanding policy of welcoming back virtually all those among the 10 percent of the population who fled after the change in government in 1975. Many have visited relatives, some have stayed and gained foreign resident status, and some have reclaimed Lao citizenship successfully. A small group tried in absentia in 1975 for antigovernment activities does not have the right of return. The Government announced in August that it would accept under UNHCR monitoring the return of citizens from the Na Pho camp in Thailand; all 1,162 returned during the year. The Government has insisted on reviewing the backgrounds of any person being repatriated formally.

Some refugee returnees carry identification cards with distinctive markings, ostensibly for use by authorities. These distinctive identification cards tend to reinforce a pattern of societal discrimination against them.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens do not have the right to change their government. The Constitution legitimizes only a single party, the Lao People's Revolutionary Party, which must approve all candidates for local and national elections. Candidates need not be LPRP members.

The Constitution provides for a 99-member National Assembly elected every 5 years in open, multiple-candidate, fairly tabulated elections, with voting by secret ballot and universal adult suffrage. The National Assembly chooses a standing committee apparently based on the previous standing committee's decision. Upon the committee's recommendation, the National Assembly elects or removes the President and Vice President. The standing committee also has powers over elections (including approval of candidates), supervision of administrative and judicial organizations, and the sole power to recommend presidential decrees. Activities of the standing committee are not fully transparent.

The National Assembly, upon the President's recommendation, elects the Prime Minister and Ministers of the Government.

The National Assembly may consider and amend draft legislation but may not propose new laws. The Constitution gives the right to submit draft legislation to the National Assembly standing committee and the ruling executive structure.

Women are underrepresented in government and politics; however, women increased their representation in the National Assembly in 1997 elections from 9 percent to 20 percent, as 20 of the 27 female candidates won seats. Four members of the 49-member LPRP Central Committee are women, 2 of whom are also members of the 7-member Standing Committee in the National Assembly. There are no women in the Politburo or the Council of Ministers.

The number of ethnic minority members in the National Assembly--9 Lao Soung (highland tribes) and 26 Lao Theung (mid-slope dwelling tribes)--matches their proportions in the general population. Men of lowland Lao origin dominate the upper echelons of the Party and the Government. Nonetheless, the President, two Deputy Prime Ministers, three Ministers, and 35 members of the National Assembly are believed to be members of ethnic minority groups.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

There are no domestic nongovernmental human rights organizations, and the Government does not have a formal procedure for registration. Any organization wishing to investigate and publicly criticize the Government's human rights policies would face serious obstacles if it were permitted to operate at all. The Government cooperates on an uneven basis with international human rights organizations.

A human rights unit in the Ministry of Foreign Affairs' Department of International Treaties and Legal Affairs has responsibility for inquiry into allegations of human rights violations. This government unit rarely responds to inquiries regarding individual cases.

In September 1998, at the invitation of the Government, a special U.N. Rapporteur on Trafficking in Children visited various locations and made inquiries into possible incidents of child prostitution and child pornography.

The Government maintains contacts with the International Committee of the Red Cross (ICRC); government officials received ICRC training on human rights law in 1998, and the Government is translating some international conventions with ICRC support. The Government has permitted U.N. human rights observers to monitor the treatment of returning refugees in all parts of the country with minimal interference but occasionally places obstacle in the way of international standards of monitoring.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution provides for equal treatment under the law for all citizens without regard to sex, social status, education, faith, or ethnicity. Children are similarly protected. Although the Government has been known to take action when well-documented and obvious cases of discrimination came to the attention of high-level officials, the legal mechanism whereby a citizen may bring charges of discrimination against an individual or organization is neither widely developed nor widely understood among the general population.

Women

There are reports that domestic violence against women occurs, although it is not widespread. Sexual harassment and rape reportedly are rare. In cases of rape that are tried in court, defendants generally are convicted.

The Constitution provides for equal rights for women, and the Lao Women's Union operates nationally to promote the position of women in society. Discrimination against women is not generalized; however, varying degrees of traditional culturally based discrimination persist, with greater discrimination practiced by some hill tribes. Many women occupy responsible positions in the civil service and private business, and in urban areas their incomes are often higher than those of men. The Family Code prohibits legal discrimination in marriage and inheritance.

In the period from 1997-99, the Government increased support for the position of women in society in development programs, some of which are designed to increase the participation of women in the political system.

Children

Government funding to provide fully for children's basic health and educational needs is inadequate. Education is compulsory through the fifth grade, but children from rural areas and poor urban families rarely comply with this requirement. Violence against children is prohibited by law, and violators are subject to stiff punishments. Reports of the physical abuse of children are rare.

People With Disabilities

With donor assistance, the Government is implementing limited programs for the disabled, especially amputees. The law does not mandate accessibility to buildings or government services for disabled persons. However, a government committee is formulating policies regarding the disabled, and a national association worked to provide greater opportunities.

Religious Minorities

The enhanced status given to Buddhism in Luang Prabang--famed for its centuries-old Buddhist tradition and numerous temples--apparently led some local officials there to act more harshly toward minority religious sects, particularly toward Christian and Baha'i, than in other areas of the country (see Section 2.c.).

National/Racial/Ethnic Minorities

The Constitution provides for equal rights for citizens of all minorities, and there is no legal discrimination against them. However, societal discrimination persists.

Approximately half the population is ethnic Lao, also called "lowland Lao." Most of the remainder is a mosaic of diverse upland hill tribes whose members, if born in Laos, are Lao citizens. There are also ethnic Vietnamese and Chinese minorities, particularly in the towns. There is a small community of South Asian origin. The implementation in 1994 of the 1990 Law on Nationality provided a means for Vietnamese and Chinese minorities to regularize their Lao citizenship, and, in sharp contrast with past practice, hundreds did so during the year. The Government encourages the preservation of minority cultures and traditions; however, due to their remote location and difficult access, minority tribes have little voice in government decisions affecting their lands and the allocation of natural resources.

The Hmong are one of the largest and most prominent highland minority groups. Societal discrimination against the Hmong continues, although there are a number of Hmong officials in the senior ranks of the Government. In recent years, the Government focused assistance projects in Hmong areas in order to overcome disparities in income along regional and

ethnic lines. Some international observers claim that governmental policies aimed at assimilating the Hmong into larger society--such as regional boarding schools--are not respectful of Hmong native culture; others see this approach as an avenue out of centuries of poverty.

During the year, the Government continued to assist citizens, largely members of ethnic minorities, who returned to Laos after having fled in 1975. Central and local government officials worked with organizations such as the UNHCR to provide land and a sustainable level of economic security. Repatriated Hmong generally face no greater discrimination than those Hmong who remained. Two U.N. observers who monitored repatriation efforts reported no serious incidents of abuse or discrimination during the year. However, a number of Hmong returnees were detained in Thoulakhom district, some for 2 months, before an apparently fabricated charge was dropped.

Under the Constitution, aliens and stateless foreign citizens are protected by "provisions of the laws," but do not in fact enjoy rights provided for by the Constitution. During the year, there were isolated cases of persons of Lao ethnic background who, as citizens of other nations, suffered discrimination when arrested or detained and were denied due process, apparently on the basis of their Lao ethnic background.

Section 6 Worker Rights

a. The Right of Association

Under the 1990 Labor Code and a 1995 prime ministerial decree, labor unions can be formed in private enterprises as long as they operate within the framework of the officially sanctioned Federation of Lao Trade Unions (FLTU), which in turn is controlled by the LPRP. Most of the FLTU's 78,000 members work in the public sector, overwhelmingly as public servants.

The State employs the majority of salaried workers, although this situation is changing as the Government reduces the number of its employees and privatizes state enterprises, and as foreign investors open new factories and businesses. Subsistence farmers comprise an estimated 85 percent of the work force.

Strikes are not prohibited by law, but the Government's ban on subversive activities or destabilizing demonstrations (see Section 2.b.) makes a strike unlikely, and none were reported during the year. However, the Labor Code does not prohibit temporary work stoppages.

With advice from the International Labor Organization (ILO), including a foreign expert provided by the ILO to work with the Ministry of Labor and Social Welfare, the Government revised the Labor Code in an effort to clarify the rights and obligations of workers and employers.

The FLTU is free to engage in contacts with foreign labor organizations, which during the year included the Association of Southeast Asian Nations (ASEAN) Trade Union and the Asia-Pacific American Labor Alliance. The FLTU is a member of the World Federation of Trade Unions (WFTU).

b. The Right to Organize and Bargain Collectively

There is no right to organize and bargain collectively. The Labor Code stipulates that disputes be resolved through workplace committees composed of employers, representatives of the local labor union, and representatives of the FLTU, with final authority residing in the Ministry of Labor and Social Welfare. Labor disputes are infrequent. The Government sets wages and salaries for government employees, while management sets wages and salaries for private business employees.

The Labor Code stipulates that employers may not fire employees for conducting trade union activities, for lodging complaints against employers about labor law implementation, or for cooperating with officials on labor law implementation and labor disputes. Workplace committees are one mechanism used for resolving complaints.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Labor Code prohibits forced labor except in time of war or national disaster, when the State may conscript laborers. The code also applies to children under the age of 15, and generally is enforced effectively. However, reports that children are being lured into other countries for sexual exploitation and slave labor continued, although there were fewer such reports than before 1997 (see Sections 5 and 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

Under the Labor Code, children under the age of 15 may not be recruited for employment. However, many children help their families on farms or in shops. The Labor Code accordingly provides that children may work for their families, provided that such children are not engaged in dangerous or difficult work. Such employment of children is common in urban shops, but rare in industrial enterprises. The Ministries of Interior and Justice are responsible for enforcing these provisions, but enforcement is ineffective due to a lack of inspectors and other resources. Education is compulsory through the fifth grade, but this requirement rarely is observed in the rural areas or among the urban poor. The Labor Code prohibits forced and bonded labor performed by children under age 15, and the law generally is enforced effectively; however, there were reports that children were lured into sexual exploitation and slavery abroad (see Sections 6.c. and 6.f.).

e. Acceptable Conditions of Work

The Labor Code provides for a broad range of worker entitlements, including a workweek limited to 48 hours (36 hours for employment in dangerous activities), safe working conditions, and higher compensation for dangerous work. The Code also provides for at least 1 day of rest per week. Employers are responsible for all expenses for a worker injured or killed on the job, a requirement generally fulfilled by employers in the formal economic sector. The daily minimum wage is \$0.25 (1,820 kip), which is insufficient to provide a decent standard of living for a worker and family. Most civil servants receive inadequate pay. However, few families in the wage economy depend on only one breadwinner. Some piecework employees, especially on construction sites, earn less than the minimum wage. Many persons are illegal immigrants, particularly from Vietnam and are more vulnerable to exploitation by employers. Although workplace inspections reportedly have increased, the Ministry of Labor and Social Welfare lacks the personnel and budgetary resources to enforce the Labor Code effectively. The Labor Code has no specific provision allowing workers to remove themselves from a dangerous situation without jeopardizing their employment.

f. Trafficking in Persons

The penal code prohibits abduction and trade in persons as well as the constraint, procuring, and prostitution of persons. However, the Government only recently has focused on the trafficking of persons across its borders. Although there are no reliable data available on the scope and severity of the problem, there are indications that the numbers are considerable. The Government has increased monitoring and educational programs provided by the Lao Women's Union and the Youth Union, both party-sanctioned organizations, designed to educate girls and young women about the schemes of recruiters for brothels and sweatshops in neighboring countries and elsewhere. In the past, the Government has prosecuted some persons for involvement in such recruiting activities. During the year, law enforcement agencies conducted a minimal number of raids on entertainment establishments accused of fostering prostitution.

The Government is increasingly concerned about Lao children being lured for sexual exploitation and slave labor in other countries. The National Commission for Mothers and Children, established in 1992 and chaired by the Foreign Minister, continues an active program with support from the U.N. Children's Fund (see Section 6.c.). The Commission, working with the Lao Women's Union, Youth Union, Justice Ministry, and Labor Ministry, has conducted workshops around the country designed to make parents and teenagers aware of the dangers of HIV. At the Government's invitation, a special U.N. Rapporteur on Trafficking in Children visited in September 1998 (see Section 4).

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